

Lecture Printout, Week W06: Respect for Persons: Humanity as an End in Itself

PART I: SOME PROBLEM CASES REVISITED.

Why does it seem wrong to kill one person to save a greater number in cases like “the organ harvest” and “punish the innocent”?

An answer from Immanuel Kant? “Now I say that the human being and in general every rational being exists an end in itself, not merely as a means to be used by this or that will at its discretion” (1785: 79).

PART II: KANT’S FORMULA OF HUMANITY.

Kant’s own text: “...act that you use humanity, whether in your own person or in the person of any other, always at the same time as an end, never merely as a means” (Kant 1785:79).

The official statement of the Formula of Humanity (FH) for PHIL1001:

FH: An act-token, x, is morally right if and only if (i) in performing x, the agent does not treat any person as a mere means to an end, and (ii) x is consistent with treating all persons as ends in themselves.

PART III: FH APPLIED: TREATING AS MERE MEANS.

Question: What is involved in “treating someone as a mere means”?

Actual consent account: _____

Objection to the actual-consent account: The willing conscript.

Possible Consent account: _____

Objections to the possible consent account: (1) CPR case. (2) Not Kant’s own view?

PART IV: FH APPLIED: TREATING AS AN END IN ITSELF.

Kant on the refusal to aid other people: “Now, humanity might indeed subsist if no one contributed to the happiness of others but yet did not intentionally withdraw anything from it; but there is still only a negative and not a positive agreement with humanity as an end in itself unless everyone also tries, as far as he can, to further the ends of others. For the ends of a subject who is an end in itself must as far as possible be also my ends, if that representation [of humanity as an end in itself] is to have its full effect on me” (1785: 80).

PART V: WHY ACCEPT FH?

- 1) Cases. _____
- 2) Consent. _____
- 3) Kant’s own argument.

“Without it [i.e. ends in themselves] nothing of absolute worth would be found anywhere; but if all worth were conditional and therefore contingent, then no supreme practical principle for reason could be found anywhere” (Kant 1785: 79). ← Captured in P2 below.

- (P1) Either persons are ends in themselves, or nothing is an end in itself.
 (P2) If nothing is an end in itself, then there is never any reason to act one way rather than in another.
 (P3) There is sometimes a reason to act in one way rather than in another.
 (C) Persons are ends in themselves.

Relevant to P1, Kant identifies only four candidates for what the “end in itself” might be:

- ☐ (i) Objects of our inclinations. _____
- ☐ (ii) Our inclinations themselves. _____
- ☐ (iii) Non-rational beings. _____
- ☐ (iv) Rational beings (persons). _____

Kant on what is characteristic of persons/rational beings: “The capacity to set oneself an end – any end whatsoever – is what characterizes humanity (and distinguished from animality” (Kant MM 6:392).

LECTURE B: FH AND THE DOCTRINE OF DOUBLE EFFECT.

The Doctrine of Double Effect (DDE): It is morally permissible to perform an act-token that foreseeably harms a person, provided that: (a) The directly intended effect of the act is good; (b) The foreseen harm is not directly intended (not even as a means to the good effect); (c) The intended good effect is sufficiently good to outweigh the harm; and (d) No more harm is caused than is necessary to achieve the intended good result.

How Might DDE be related to FH? _____

Bennett’s Objection to DDE: The “reluctant” terror bomber.

- P1. If DDE is true, then the reluctant terror bomber’s act of bombing civilians is morally permissible.
- P2. It is not the case that the reluctant terror bomber’s act of bombing civilians is morally permissible.
- C. It is not the case that DDE is true.

Rationale for P1? _____

Objection to P1? _____

An objection to FH itself (apart from DDE): Involuntary Quarantine.

- P1. In forcibly quarantining Mary, the community treated her as a mere means.
- P2. If P1 is true, then if FH were true, the act of forcibly quarantining Mary was wrong.
- P3. It is not the case that the act of forcibly quarantining Mary was wrong.
- C. It is not the case that FH is true.

Rationales for the premises? _____

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